

Tentative Rulings
September 10, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

12. *Marquez v. Look Cinemas II, LLC, et al*, Case No. CIVSB2428912
Plaintiff's Motion for Relief from Order Granting Defendant Spirit Master's MSJ
9/10/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT**. The Court would reconsider its July 20, 2026, ruling on Defendant Spirit Master's Motion for Summary Judgment (MSJ) and re-calendar the hearing to allow Plaintiff an opportunity to file its opposition. The Court will seek party input on a hearing date and proper opposition and reply deadlines in order to re-hear the matter.

Case Summary

This is, essentially, a premises liability matter. Defendant Look ran the theater premises; Defendant Spirit owned the premises; and Defendant Morrison was the property manager. Plaintiff was lawfully on the property when she fell due to a purportedly hazardous and dangerous condition.

As such, on October 8, 2024, she filed suit alleging (1) negligence and (2) premises liability against all Defendants. On December 5, 2024, Defendant Spirit filed a Cross-Complaint against Look for (1) contractual indemnity; (2) equitable indemnity; (3) contribution; (4) breach of sub-contracts; and (5) declaratory relief. On April 4, 2024, an amended Cross Complaint was filed asserting the same causes but including a corrected caption. On July 1, 2025, Plaintiff filed a dismissal without prejudice as to Defendant Morrison.

Relevant here, Defendant Spirit filed an MSJ as to the Complaint on March 26, 2026. As of the date of the hearing on that MSJ on July 20, 2026, no opposition was provided and the Court adopted the tentative to grant the unopposed MSJ. This motion for relief from that judgment followed.

Statement of Law

Relief under Code of Civil Procedure section 473(b) may be based either on: (1) an "attorney affidavit of fault," in which event, relief is *mandatory*; or (2) declarations or other evidence showing "mistake, inadvertence, surprise or excusable neglect," in which event relief is *discretionary*. (See, e.g., *Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25-26.) "The court, may, upon any terms as may be just, relieve a party of his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise or excusable neglect." (Code Civ. Proc., § 473(b).) Setting aside under this standard requires the mistake, inadvertence, or surprise to be *reasonable*. (*Cyrus v. Haveson* (1976) 65 Cal. App. 3d 306, 315). The law strongly favors trial on the merits, so doubts in applying Section 473 must be resolved in favor of relief. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233).

Analysis

Here, Plaintiff moved for relief from the July 20, 2026, grant of Defendant Spirit Master's MSJ on the basis that the failure to oppose was through "mistake, inadvertence, and excusable neglect" (Motion, 2:13-14.) The movant cites an internal firm calendaring error in which two separate motions served on the same day were conflated on the firm's calendaring system. (Bassil Decl., ¶¶3-4.) Counsel was unaware that the MSJ was unopposed until the day of the hearing, and he noted that the failure to

oppose was unintentional at the time of the hearing. (Bassil Decl., ¶¶7-9.) Including with the supporting declaration are proposed copies of the opposition and supporting documents. (*Ibid.*, ¶12 & Exhs. E-G.)

Defendant opposes the motion for relief on the grounds that Section 473(b) does not provide for *mandatory* relief and the facts do not support excusable neglect such that *discretionary* relief is appropriate. (See *English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 136-137.) The Court agrees that mandatory relief is not available.

However, it appears that the facts indicate excusable neglect and that no prejudice would be imparted by the grant of discretionary relief. Defendant rightly points out that a busy calendar and disorganization are not excusable neglect. Still, in this case, there appears to be more than that. The undisputed facts indicate that two separate dispositive motions were sent to Plaintiff on the same date. (Bassil Decl., ¶3 & Exh. A.) Notably, the motions were similarly titled and filed by the same Defendant, namely Defendant Spirit. (*Ibid.*) These similarly titled motions were erroneously conflated by Plaintiff's office as the *same motion*. (Bassil Decl., ¶4.) While a close reading would have prevented the error, the error is not a result of a busy calendar or mere disorganization. Rather, it appears an excusable error given the timing and similarity of the motions.

Even in the alternative, the Court maintains inherent authority to reconsider its own order upon notice and an opportunity for the parties to be heard. (*Le Fracois v. Goel* (2005) 35 Cal.4th 1094.) Thus, viewed with an understanding of the public policy to hear cases on their merits and considering that there is no assertion of prejudice, the Court would grant the motion.

13. *Opendoor Property Trust I v. Zhang, et al*, Case No. LLTSB2400104
Motion for Reconsideration of Order Granting MSJ (re All Occupants)
9/10/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY**.

Case Summary

This is an unlawful detainer action. Plaintiff Opendoor asserts it is the owner of the at-issue property and that Defendant-Tenant failed to vacate after a five-day notice to vacate. As such, it filed an unlawful detainer action on October 2, 2024. Relevant here, a motion for summary judgment against Defendant Zhang was entered on May 21, 2026. That judgment is currently on appeal.

On June 6, 2026, Plaintiff sought to amend the judgment by *ex parte* to add "All Unknown Occupants," stating that the Proof of Service on All Unknown Occupants was inadvertently not filed with the Court. On June 11, 2026, the Court denied that *ex parte* application but stated Plaintiff could bring a motion for summary judgment. That motion for summary judgment was heard, and granted, on August 11, 2026. This motion for reconsideration followed.

Statement of Law

“Section 1008, subdivision (a) requires that a motion for reconsideration be based on new or different facts, circumstances, or law. A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time.” (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.) “The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial.” (*Id.*, at pp. 212-213.) A motion for reconsideration is properly denied if based on evidence that could have been presented in connection with the original motion. (*Morris v. AGFA Corp.* (2006) 144 Cal.App.4th 1452, 1460; *Hennigan v. White* (2011) 199 Cal.App.4th 395, 406.)

Analysis

Timeliness: Defendant is correct that, although her written opposition was filed a day prior to the continued hearing on the All Occupants Motion, it was still timely given the unlawful detainer timeliness. Pursuant to California Rules of Court, Rule 3.1351, an opposition to a summary judgment motion in an unlawful detainer case “may be made orally at the time of hearing or in writing,” as long as the written opposition is filed and “served on or before the court day before the hearing.” (Rules of Court, rule 3.1351(b)-(c).) Therefore, the Court’s statement at hearing that the written opposition was untimely was made in error.

However, in accordance with rule 3.1351 this Court *did*, in fact, allow robust oral argument which covered the at-issue arguments and facts. Defendant admits to as much in her briefing. (See, e.g., Mot. at 4 [discussing oral argument regarding solar panels].) Thus, the Court reviewed the arguments, and any error regarding the determination of timeliness of the written opposition appears harmless.

More importantly, “[a]ccording to the plain language of the statute, a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon ‘new or different facts, circumstances, or law.’” (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) Here, there are *no* new or different facts, circumstances, or law. Rather, the arguments and facts presented are the *same* as those presented and considered at the underlying hearing. As such, Defendant does not qualify for reconsideration under Section 1008.

No Changed Analysis: The only argument encompassed in Plaintiff’s opposition (or this motion) that challenges the basis of the MSJ is that the underlying notice on “All Occupants” was not properly served. Again, this was an argument that was forwarded and considered at the underlying hearing.

Defendant, however, presents no evidence that would create a question of material fact as to the reasoning of the Court in granting summary judgment. In particular, in her opposition, Defendant presents no evidence or argument which would credibly challenge that:

- An order approving service by posting was approved by the Court on December 17, 2024. (S. DeVonne Decl., ¶¶11-16, Ex. B.)
- On July 15, 2026, Plaintiff filed a Proof of Service signed by a registered process server under penalty of perjury showing service on All Unknown Occupants by posting on January 3, 2025, and mailing by certified mail on January 10, 2025.

- A Prejudgment Claim of Right of Possession is listed as one of the documents included with the service and that service on All Unknown Occupants occurred at the same time as service on Defendant, in compliance with Code of Civil Procedure section 415.46. (S. DeVonne Decl., Ex. A.)
- No occupant filed a Prejudgment Claim of Right to Possession. (S. DeVonne Decl., ¶11.)

Thus, any error in concluding that the *written* opposition was untimely is harmless. Furthermore, as stated *supra*, this motion does not present new or different facts, circumstances, or law sufficient to warrant reconsideration.
